

CONTRACT NO. _____

MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE
AND CHEYENNE FRONTIER DAYS, INC.

This Memorandum of Understanding (MOU) is made and executed this _____ day of _____, 2026, by and between the City of Cheyenne (“City”), a municipality duly organized and existing under the laws of the State of Wyoming, whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and Cheyenne Frontier Days, Inc. (“CFD”), a Wyoming corporation, whose address is P.O. Box 2477, Cheyenne, Wyoming 82003. The City and CFD may be referred to individually as a “Party” or collectively as the “Parties.”

RECITALS

1. The City owns certain land and buildings near Frontier Park that have historically been used by CFD for parking, camping, and related activities during the annual Cheyenne Frontier Days celebration. These City-owned properties include:
 - a. The land surrounding Lake Absarraca, generally described as the area bordered by Kennedy Road on the south, Interstate 25 on the west, the Governor’s Mansion property on the northwest, and the Airport Golf Course on the north, northeast, and east; and
 - b. The “Brown Lot” parking area, formerly referred to in prior versions of this MOU as the “E Lot,” generally described as the area north of Lions Park Drive, south of the Municipal Aquatics Center, and east of Carey Avenue.
2. In addition to the City-owned property described above, the overall parking plan for the Cheyenne Frontier Days celebration also involves the nearby “Orange Lot,” generally located between Volunteer Avenue on the west and Carey Avenue on the east, west of Sloan Lake in Lions Park. The general location of the Brown Lot and the Orange Lot areas are depicted on the map attached as Exhibit A and incorporated herein by reference.
3. The City and CFD have previously entered into agreements regarding CFD’s use of City-owned property and infrastructure in connection with the Cheyenne Frontier Days celebration. This MOU is intended to continue that general arrangement and is substantially similar to prior agreements between the Parties.
4. For the 2026 Cheyenne Frontier Days celebration, CFD proposes to use certain City-owned property for the following purposes:
 - a. To provide overnight camping at Lake Absarraca, beginning on the Sunday preceding the Cheyenne Frontier Days celebration and continuing through the Monday after the celebration ends;

- b. To provide permit parking in the Brown Lot. No overnight parking shall be allowed in the Brown Lot. This additional parking for automobiles, in the confines of Lions Park, is intended to facilitate access to Frontier Park for volunteers and contractors. This will allow additional public parking in the Orange Lot. The intended purpose is to relieve parking pressure in the Avenues neighborhood, as well as to protect the public pedestrian traffic from crossing Carey Avenue; and
- c. To provide public paid parking in the Lake Absarraca area, extending from Kennedy Road to the camping area described in Recital 1.a.

WHEREFORE, in consideration of the mutual promises by the City and CFD made each to the other, the Parties agree as follows:

1. CFD shall:

- a. Maintain control over the areas covered by this MOU;
- b. Provide portable toilet facilities for the areas covered by this MOU;
- c. Mark and designate camping and parking spaces to maximize use of available space;
- d. Provide staff to control access to areas managed by CFD;
- e. Allow for public access to Lions Park along Lions Park Drive during the Cheyenne Frontier Days celebration;
- f. Police and patrol the campground on a 24-hour basis;
- g. Provide sewer services for RV units;
- h. Provide access along Kennedy Road for day-use fishing at Lake Absarraca. Fishing access shall not be permitted on the north side of the lake;
- i. Keep all grounds clean and free from litter, and empty trash receptacles daily, or as needed. CFD shall coordinate with the City Sanitation Department for placement of additional dumpsters at Lake Absarraca; and
- j. Provide proof of insurance as follows: CFD agrees to file with the City, Certificates of Insurance verifying each type and amount of insurance coverage listed below. Certificates shall be submitted to the City prior to commencement of performance under this MOU.

Type of Coverage

Minimum Limits

- Commercial Automobile Liability

\$1,000,000 combined single limit
\$5,000,000 excess or umbrella

- Commercial General Liability	\$1,000,000 per occurrence \$2,000,000 aggregate
- Excess Liability Coverage	\$5,000,000 per occurrence \$5,000,000 aggregate
- Workers' Compensation	Statutory
- Employer's Liability Stop Gap (if afforded by voluntary Workers' Compensation)	\$500,000 each accident \$500,000 each disease-policy limit \$500,000 disease/each employee

It is understood and agreed that these policies are primary and not contributory. It shall be an affirmative obligation of CFD to immediately notify in writing the City Risk Manager, City Clerk, and City Attorney of any fact, circumstances, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this MOU. Failure to do so shall be construed to be a breach of this MOU.

The City of Cheyenne shall be named as an additional insured on CFD's insurance policies, except Workers' Compensation, and CFD shall provide, upon request, a copy of an endorsement providing this coverage.

In addition, CFD shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's right or CFD's obligation hereunder.

The City has the right to reject a certificate of insurance if CFD's insurance company is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this MOU shall have a minimum A.M. Best rating of A- (Excellent);

- k. Provide daily cleanup and final cleanup of all areas covered by this MOU;
 - l. Restore the ground surface in the Brown Lot to substantially the same condition that existed immediately prior to the 2026 Cheyenne Frontier Days celebration; and
 - m. Provide payment to the City of Cheyenne in the amount of \$15,000.00 prior to the start of the 2026 Cheyenne Frontier Days celebration.
2. The City shall:
- a. Provide adequate dumpsters for the areas covered by this MOU and empty them daily, or as otherwise needed.

- b. Provide daily maintenance of associated restroom facilities including all supplies, but excluding the facilities at Lake Absarraca, which will be maintained by CFD; and
 - c. Assist with T-post installation for fencing of the areas, as mutually determined by the Parties prior to the Monday preceding the Cheyenne Frontier Days celebration.
- 3. The City agrees to allow CFD to use the Brown Lot and Lake Absarraca Campground for the purposes described in this MOU in exchange for payment to the City in the amount of fifteen thousand dollars (\$15,000.00).
 - 4. This MOU shall commence June 1, 2026, and terminate on August 31, 2026, unless sooner terminated by either Party upon thirty (30) days written notice. Notwithstanding the foregoing, CFD's obligations under Subsections 1(k), 1(l) and 1(m) shall survive the expiration or termination of this MOU and remain in full force and effect until satisfied.
 - 5. CFD agrees to comply with all applicable federal, state, and local laws, rules and regulations.
 - 6. The City expressly invokes and reserves its governmental immunity for any claim arising out of this MOU pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*
 - 7. CFD agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction, or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by: (1) CFD's breach of any term or provision of this MOU, or (2) any negligent or wrongful act, error, or omission by CFD, or its employees or subcontractors in the performance of this MOU. CFD acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.
 - 8. This MOU contains the entire understanding of the Parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. The Parties agree that this MOU shall not become effective or enforceable until it has been approved by the Parties' respective governing bodies.

[SIGNATURES OF FOLLOWING PAGE]

IN WITNESS WHEREOF, the Parties hereto have caused these presents to be signed in their names by and through their respective authorized representatives.

CITY OF CHEYENNE

Date

Patrick Collins, Mayor

(SEAL)

Attest:

Kylie Soden, City Clerk

CHEYENNE FRONTIER DAYS, INC.

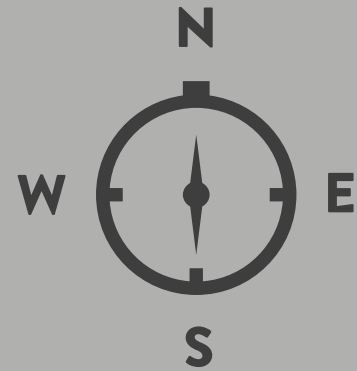
Date

By: _____

Print Name: _____

Title: _____

Exhibit A



HYNDS BOULEVARD

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W. 8TH AVENUE

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FRONTIER PARK

- BUCKIN' A SALOON**
- CARNIVAL MIDWAY**
- THE GARDEN**
- MORNING STAR AMERICAN INDIAN VILLAGE**
- OLD FRONTIER TOWN**
- OLD WEST MUSEUM**

- ACCESSIBILITY ASSISTANCE
- ACCESSIBILITY PARKING *PAID*
- CFD MERCHANDISE
- FIRST AID
- FRONTIER PARK INFO
- LOST & FOUND
- PARK-N-RIDE
- PARKING LOT
- PORTALS
- PUBLIC TRANSPORTATION
- SECURITY GATE
- TICKET ASSISTANCE